

25STCV04580 25STCV04580

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Case Number: 25STCV04580 Hearing Date: September 1, 2026 Dept: 508

Superior

Court of California

County

of Los Angeles

Department 508

ARMAN ROSHANNA, et al.,

Plaintiffs,

vs.

ADRIANA CASCARANO,

Defendant.

Case No.:

25STCV04580

Hearing Date:

September 1, 2026

Hearing Time:

8:30 a.m.

[TENTATIVE]

ORDER RE:

PLAINTIFFS AND CROSS-DEFENDANTS ARMAN

ROSHANNA, DANIEL HASHEMI, AND KEYAN KAZEMIAN'S SPECIAL MOTION TO STRIKE
PURSUANT TO CODE OF CIVIL PROCEDURE SECTION 425.16

Background

On February 18, 2025,
Plaintiffs Arman Roshanna, Danial Hashemi, and Keyan Kazemian (collectively,
"Plaintiffs") filed this action against Defendant Adriana Cascarano
("Cascarano"), alleging five causes of action for (1) violation of Penal Code
section 496, (2) violation of Civil Code section 1950.5, (3) breach of
residential lease agreement, (4) negligence, and (5) conversion.

Plaintiffs allege that

they rented a residential home from Cascarano located at 6300 Vista
Del Mar, Apt. A, Playa Del Rey, California 90293 (the "Rental Unit"). (Compl.,
¶ 20.) Plaintiffs paid a \$15,000.00 security deposit to Cascarano as a
condition of the rental agreement. (Id., ¶ 21.) Plaintiffs moved into
the Rental Unit on or about July 25, 2023, with a monthly rent of \$10,000.00,
and moved out on or about January 25, 2024. (Id., ¶¶ 22-23.) Plaintiffs
allege that Cascarano withheld approximately \$9,000.00 from their security
deposit, citing purported "repairs" for minor wall scuffs and small
patchwork left after Plaintiffs removed a television, which Plaintiffs
contend constituted ordinary wear and tear. (Id., ¶ 27.) Plaintiffs
further allege that Cascarano failed to return their security deposit
or provide a proper, itemized accounting of lawful deductions within the
required 21-day timeframe in violation of Civil Code section 1950.5.
(Id., ¶ 28.)

On March 5, 2026, the
Court held a Case Management Conference. The Court set a jury trial for January
13, 2027 and a Final Status Conference for January 8, 2027. (March
5, 2026 Minute Order.)

On May 14, 2026, Cascarano

filed a cross-complaint against Plaintiffs, alleging two causes of action for (1) breach of contract and (2) intentional tort. Cascarano also seeks punitive damages.

On May 22, 2026, Plaintiffs filed a special motion to strike “the mediation-clause allegations in Cross-Complainant Adriana Cascarano’s Cross-Complaint, and all damages flowing from those allegations.” (Notice of Mot., 2:6-8.) Cascarano opposes. Plaintiffs replied.

Request for
Judicial Notice

The Court grants Plaintiffs’ request for judicial notice of Exhibits 1, 2, and 3.

Legal Standard

A

party may file a special motion to strike to dismiss entire complaints, specific causes of action, or portions of a cause of action when the party believes the lawsuit is a strategic attempt to infringe upon their “valid exercise of the constitutional rights of freedom of speech and petition for the redress of grievances.” (Code Civ. Proc., § 425.16, subd. (a).) The anti-SLAPP statute (strategic lawsuits against public participation) protects parties from frivolous lawsuits: “you have a right not to be dragged through the courts because you exercised your constitutional rights.” ((People ex rel. Lockyer v. Brar (2004) 115 Cal.App.4th 1315, 1317.)) The legislature intended this statute to be construed broadly. (Code Civ. Proc., § 425.16, subd. (a).)

Anti-SLAPP actions must be filed within 60 days of service of the operative complaint and stays discovery until after disposition of the motion. (Code Civ. Proc., § 425.16, subds. (f), (g).)

Anti-SLAPP actions employ a two-step analysis to determine the merits. (Navellier v. Sletten (2002) 29 Cal. 4th 82, 88 (Navellier).) In the first prong, the defendant must make a threshold showing that the challenged cause of action arises from protected activity. (Ibid.) “A defendant meets this burden by

demonstrating that the act underlying the plaintiff's cause fits one of the [following] categories:" (Ibid.)

(1) any

written or oral statement or writing made before a legislative, executive, or judicial proceeding, or any other official proceeding authorized by law,

(2) any written

or oral statement or writing made in connection with an issue under consideration or review by a legislative, executive, or judicial body, or any other official proceeding authorized by law,

(3) any written

or oral statement or writing made in a place open to the public or a public forum in connection with an issue of public interest, or

(4) any other

conduct in furtherance of the exercise of the constitutional right of petition or the constitutional right of free speech in connection with a public issue or an issue of public interest.

(Code Civ. Proc., § 425.16, subd. (e).) If the court finds the defendant made the requisite showing, the burden shifts to the plaintiff to demonstrate the probability that their cause(s) of action will succeed. (Code Civ. Proc. § 425.16, subd. (b)(1); Navellier, *supra*, at p. 88-89.)

The second step employs a "summary-judgment-like procedure," because the court will not weigh evidence or resolve conflicting factual claims. (*Sweetwater Union High School District v. Gilbane Building Co.* (2019) 6 Cal.5th 931, 940 (*Sweetwater*).) The court's inquiry is limited to whether the plaintiff "stated a legally sufficient claim and made a prima facie factual showing sufficient to sustain a favorable judgment." (Ibid.) This burden is minimal; however, a plaintiff cannot solely rely on their complaint—even if verified. (Ibid.) Instead, they must provide competent evidence, which the court accepts as true. (Ibid.) The court will only evaluate the defendant's showing "to determine if it defeats the plaintiff's claim as a matter of law." (Ibid.)

"Only a cause of action

that satisfies both prongs of the anti-SLAPP statute—i.e., that arises from protected speech or petitioning and lacks even minimal merit—is a SLAPP, subject to being stricken under the statute.” (Navellier, supra, at p. 89.)

If a defendant prevails on their anti-SLAPP motion, they are entitled to attorney fees and costs as a matter of right. (Code Civ. Proc. § 425.16, subd. (c)(1).) However, if the anti-SLAPP motion is deemed frivolous or intended to cause unnecessary delay, the court will award the prevailing plaintiff reasonable fees, pursuant to Code of Civil Procedure section 128.5. (Ibid.)

Discussion

Plaintiffs move to strike the mediation-clause allegations in Cascarano's cross-complaint, and all damages flowing from that allegation.

A. Procedural Issues

Previously, Plaintiffs filed twelve evidentiary objections to Cascarano's opposition. At the July 16, 2026 hearing regarding the evidentiary objections, Plaintiffs withdrew all of their objections. The Court continued the hearing on the instant motion from July 16, 2026 to September 1, 2026.

Thereafter, on August 19, 2026, Cascarano filed an “amendment to opposition,” which includes new legal arguments, and filed an additional declaration. Plaintiffs filed an objection to the amendment.

In Plaintiffs' objection, they assert that “[d]uring the hearing that was previously set for the Court to hear the antiSLAPP motion, the Court made clear that the hearing was only being continued following the issues concerning evidentiary objections (which Plaintiff withdrew), and that the briefing on the motion remain closed. Also,

papers permitted on a noticed motion are fixed by statute: moving papers, opposing papers, and reply papers. (Code Civ. Proc., § 1005, subd. (b).) Cascarano filed opposition to the Special Motion to Strike, and Cross-Defendants filed a reply. Briefing closed before the original July 16, 2026 hearing date. The Court's July 16, 2026 Minute Order reflects that the hearing was continued to September 1, 2026 on the Court's own motion. While the Minute Order neither reopened briefing nor expressly prohibit further briefing by either party, the tentative ruling issued in advance of the hearing stated that there was no more briefing and the courts [sic] statements in court made clear no more briefing was permitted." (Obj., 2:15-28.)

Pursuant to the Court's tentative order, it expressly stated that "The revised evidence may eliminate objectionable material; however, no new evidence or new argument is to be submitted unless it is as a result of compromises reached during the meet and confer process." (Tentative Order 7/16/26, 2:7-9, emphasis in original.) Because Plaintiffs withdrew the objections, the parties did not meet and confer, so the parties could not stipulate to submitting new evidence or arguments.

Plaintiffs assert that "[o]n its face, the Amendment is a new, complete merits brief (twenty-one pages, with an exhibit index, table of contents, table of authorities, factual background, legal-standard section, and seven argument sections) and it expressly devotes a section to 'Direct Responses to Matters Raised in Cross-Defendants' Reply.' It is a sur-reply in all but name." (Obj., 3:4-9.) Additionally, Plaintiffs contend that "[t]he New Declaration attaches a new evidentiary exhibit including a redacted January 31, 2026 email chain, identified as Exhibit 6 that was not submitted with Cascarano's original opposition, together with four pages of new testimony. Because Cross-Defendants' reply is already on file, Cross-Defendants have no opportunity to respond to this new material in the ordinary course of briefing. Permitting a party to hold back evidence and inject it after the close of briefing would defeat the orderly briefing sequence prescribed by section 1005 and would be fundamentally unfair to the moving parties." (Obj., 3:20-28.)

Given that Cascarano already filed an opposition and declaration, she had an opportunity to brief the issues. Were the Court to consider her papers, Plaintiffs would be unduly prejudiced. Additionally, Cascarano's explicit

inclusion of a response section to Plaintiffs' reply is evidence that the amended opposition is an improper sur-reply, as Plaintiffs contend. Cascarano does not demonstrate that the parties agreed to the amended opposition (Plaintiffs' objection demonstrates otherwise), nor did Cascarano obtain leave from the Court to file this additional opposition. Accordingly, the Court will not consider Cascarano's amended opposition.

B.

Relevant

Allegation of the Cross-Complaint

Cascarano's cross-

complaint alleges that Plaintiffs

breached the parties' contract on or about January 25, 2024 due to "the acts specified in Attachment BC-2." (Cross-Compl., p. 2, BC-2.) Cascarano also alleges that she "suffered damages legally (proximately) caused by defendant's breach of the agreement ... as stated in Attachment BC-4." (Cross-Compl., p. 2, BC-4.) Attachment BC-2 and BC-4 for breach of contract provide the following:

"The

Cross-Complainant has incurred additional attorney's fees exceeding \$3,000 to date due to the parties' failure to comply with the lease's mediation requirement. Tenants failed to satisfy the rent-discount condition requiring renter's insurance and monthly cleaning (and provided at least one cleaning receipt that was later determined not to be authentic), resulting in \$6,000 in discounted-rent damages and approximately \$1,700 in deep-cleaning/remediation costs (including 19 hours of good-faith cleaning time valued at \$950). Additional damages include loss of use (\$9,000), fair rental value attributable to an undisclosed additional occupant (\$6,000), and window/wall panel damage (\$500, not repairable). The Cross-Complainant also seeks prorated rent for early move-in (\$333.33) and furniture damage previously documented but not claimed in good faith, which is currently being calculated."

C.

Prong

One: Protected Activity

The Anti-SLAPP Statute protects "(1) any written or oral statement or writing made before a legislative, executive, or judicial proceeding, or any other official proceeding authorized by law, (2)

any written or oral statement or writing made in connection with an issue under consideration or review by a legislative, executive, or judicial body, or any other official proceeding authorized by law, (3) any written or oral statement or writing made in a place open to the public or a public forum in connection with an issue of public interest, or (4) any other conduct in furtherance of the exercise of the constitutional right of petition or the constitutional right of free speech in connection with a public issue or an issue of public interest.” (Code Civ. Proc., § 425.16, subd. (e).)

Plaintiffs contend that Cascarano’s cross-complaint’s allegation “that Cross-Defendants incurred ‘\$3,000’ in additional attorney’s fees ‘due to the parties’ failure to comply with the lease’s mediation requirement[,]’ (Cross-Complaint, Attachment BC-2/BC-4[]) ... does not merely reference the lawsuit as background or context. It seeks damages because Cross-Defendants filed this action without first mediating. The protected petitioning activity (filing the Complaint) is the alleged breach itself. The claim does not arise from some independent wrong that happened to precede or coincide with litigation. It arises from the act of filing suit.” (Mot., 9:28-10:7.)

Plaintiffs cite *Navellier v. Sletten*

(2002) 29 Cal.4th 82, 93, where the California Supreme Court expressed that “the [anti-SLAPP] statute does not bar a plaintiff from litigating an action that arises out of the defendant’s free speech or petitioning [citation]; it subjects to potential dismissal only those actions in which the plaintiff cannot ‘state[] and substantiate[] a legally sufficient claim’ ... [A]pplying the anti-SLAPP statute to an action based, as this one is, on alleged breach of a release does not take away from the releasee the constitutional right to petition the court to redress legitimate grievances. As our emerging anti-SLAPP jurisprudence makes plain, the statute poses no obstacle to suits that possess minimal merit.” However, the court also expressed that “but for the federal lawsuit and Sletten’s alleged actions taken in connection with that litigation, plaintiffs’ present claims would have no basis. This action therefore falls squarely within the ambit of the anti-SLAPP statute’s ‘arising from’ prong.” (Id. at p. 90.)

Plaintiffs assert that “[t]his case in *Navellier*. Cascarano has filed a breach-of-contract claim alleging that Cross-Defendants breached the lease by filing this lawsuit. The defendant’s activity that gives rise to the asserted liability is the filing of a lawsuit. That is protected activity.” (Mot., 10:24-28, emphasis omitted.)

Plaintiffs also assert that the “breach of contract claim also alleges unprotected conduct: failure to maintain renter’s insurance, submission of an allegedly fraudulent cleaning receipt, an

undisclosed occupant, property damage, and other lease violations.

(Cross-Complaint, Attachment BC-2/BC-4.) This motion does not target those allegations." (Mot., 11:21-25.)

In *Bonni v. St. Joseph Health System*

(2021) 11 Cal.5th 995, 1010, the California Supreme Court expressed that "[i]t does not matter that other unprotected acts may also have been alleged within what has been labeled a single cause of action; these are 'disregarded at this stage.' [Citation.] So long as a 'court determines that relief is sought based on allegations arising from activity protected by the statute, the second step is reached' with respect to these claims."

Plaintiffs assert that they "identify the

following protected-activity allegations: the Cross-Complaint's allegation that Cross-Defendants 'fail[ed] to comply with the lease's mediation requirement,' and the damages claim for 'attorney's fees exceeding \$3,000' flowing from that alleged failure. (Cross-Complaint, Attachment BC-2/BC-4.) These allegations are based on Cross-Defendants' exercise of their right to petition. The remaining lease-violation allegations are unprotected and are disregarded at this stage." (Mot., 12:10-16.)

In opposition, Cascarano asserts that the "motion

fails at the first step because the Cross-Complaint is not based on Plaintiffs filing a lawsuit, retaining counsel, making litigation communications, or exercising petition rights. The claims arise from non-protected conduct during the tenancy, including property damage, cleaning misrepresentations, receipt fraud, possible unauthorized occupancy, concealment, unpaid obligations, and other lease-related breaches. The fact that Plaintiffs later filed a lawsuit does not transform all related landlord-tenant disputes into protected activity. A claim is not subject to anti-SLAPP merely because it was filed after protected activity or because protected activity appears in the factual background. The relevant question is what conduct gives rise to liability." (Opp., 5:3-11.)

Although Cascarano disputes that the

cross-complaint arises out of protected activity, Plaintiffs demonstrate that part of Cascarano's claim and request for damages arises out of Plaintiffs' decision to file a lawsuit instead of proceeding with mediation. Cascarano does not differentiate between her claims relating to the tenancy and the claim regarding Plaintiffs' protected petitioning activity. Because filing a lawsuit

is unequivocally protected petitioning activity, Plaintiffs satisfy prong one. Cascarano must now present evidence to the Court that her claim has a probability of success.

D. Prong Two: Probability of Success on the Merits

Plaintiffs demonstrated

that the cause of action, in part, arises out of protected activity, so the burden shifts to Cascarano to show that “each challenged claim based on protected activity is legally sufficient and factually substantiated.” (Baral v. Schnitt (2016) 1 Cal.5th 376, 396.) Affidavits, declarations, and

their equivalents may be considered in evaluating an anti-SLAPP motion, so long as the evidence is admissible or reasonably capable of being admitted at trial.

(Sweetwater, supra, 6 Cal.5th at p. 949.)

To state a cause of

action for breach of contract, a plaintiff must be able to establish “(1) the existence of the contract, (2) plaintiff’s performance or excuse for nonperformance, (3) defendant’s breach, and (4) the resulting damages to the plaintiff.” (Oasis West Realty, LLC v. Goldman (2011) 51 Cal.4th 811, 821.)

Pursuant to the parties’

lease agreement, the mediation clause that Cascarano predicates part of her breach of contract on states as follows:

“Landlord

and Tenant agree to mediate any dispute or claim arising between them out of this Agreement, or any resulting transaction, before resorting to court action.

Mediation fees, if any, shall be divided equally among the parties involved.

If, for any dispute or claim to which this paragraph applies, any party commences an action without first attempting to resolve the matter through mediation, or refuses to mediate after a request has been made, then that party shall not be entitled to recover attorney fees, even if they would otherwise be available to that party in any such action.”

(Kazemian

Decl., Ex. A, § 35A.)

Plaintiffs assert that the

mediation clause at issue does not create a damages claim. Plaintiffs contend that “[t]his is the threshold deficiency. Paragraph 35A of the lease provides exactly one consequence for failure to mediate before filing suit: ‘that party shall not be entitled to recover attorney fees, even if they would otherwise be available to that party in any such action.’ (Kazemian Decl., ¶ 4, Exhibit A at p. 5.) The clause does not state that failure to mediate constitutes a breach of the lease. It does not authorize the other party to collect its attorney’s fees as compensatory damages. It does not create an independent cause of action. It establishes a fee-forfeiture condition and nothing more.” (Mot., 13:6-13.) Plaintiffs assert that “[t]his is the standard C.A.R. Form LR mediation clause used in residential leases throughout California. California courts have consistently interpreted identical language as a fee-recovery condition, not a damages-generating obligation.” (Mot., 13:14-17.) Plaintiffs cite *Lange v. Schilling* (2008) 163 Cal.App.4th 1412, 1416-1418, asserting that “the Court of Appeal enforced the C.A.R. mediation clause solely as a condition precedent to recovering attorney’s fees.” (Mot., 13:17-19.) In that case, the Court of Appeal looked at a similar provision to the mediation clause in the instant case and explained that “[w]hile paragraph 22 of the agreement authorizes attorney fees to the prevailing party in a dispute between a buyer and seller, that right is contingent on compliance with paragraph 17A. Again, this provision states: ‘If, for any dispute or claim to which this paragraph applies, any party commences an action without first attempting to resolve the matter through mediation, or refuses to mediate after a request has been made, then that party shall not be entitled to recover attorney fees, even if they would otherwise be available to that party in any such action.’ Plaintiff filed his complaint first and only later offered mediation. His failure to meet the condition precedent required by paragraph 17A precludes any award of fees.” (*Lange v. Schilling*, *supra*, at pp. 1416-1417; see also *id.* at p. 1418 [“Paragraph 17A sets forth a clear and unambiguous condition precedent that must be met in order for attorney fees to be awarded: the party must attempt mediation before commencing litigation. By filing his complaint before attempting mediation, plaintiff lost any right to attorney fees.”].)

Plaintiffs further assert that “[t]he mediation clause may be enforceable as a fee-disentitlement provision. But Cascarano does not rely on the clause as a fee-disentitlement provision. Cascarano sues for damages, claiming that Cross-Defendants’ failure to mediate is a breach of contract that caused \$3,000 in compensable harm. That theory requires reading the clause as a mandatory pre-litigation obligation enforceable by suit. And that reading is void.” (Mot., 14:12-17.) Plaintiffs

cite Civil Code section 1953, subdivision (a)(4), which provides that “[a]ny provision of a lease or rental agreement of a dwelling by which the lessee agrees to modify or waive ... [h]is or her procedural rights in litigation in any action involving his or her rights and obligations as a tenant ... shall be void as contrary to public policy.” Plaintiffs assert that “California courts have applied section 1953 to invalidate lease provisions that restrict tenants’ access to the courts.” (Mot., 14:22-23.) Further, Plaintiffs contend that “[i]f Cascarano’s theory is correct---that the mediation clause creates a mandatory pre-suit obligation enforceable by damages---then the clause adds a required step and required cost before the tenant can access the courts to vindicate rights under Civil Code section 1950.5. That modifies the tenants’ procedural rights in litigation and is void under section 1953. Cascarano cannot have it both ways. If the clause is what it says it is (a fee-disentitlement condition), there is no damages claim. If it is what Cascarano needs it to be (a mandatory pre-suit barrier), it is void.” (Mot., 15:2-9.)

Cascarano’s opposition

dedicates almost the entirety of her argument for the second prong to asserting that she can support her case because she has evidence demonstrating that tenants breached the lease due to property damage, evidence that the condition of the premises at move-out was not completed pursuant to the lease, and evidence that Plaintiffs hosted an unauthorized occupant. More relevant to the second prong of the anti-SLAPP motion are Cascarano’s assertions that she “has evidence supporting that the security deposit withholding was not wrongful or retaliatory,” and that “the timeline shows that the Cross-Complaint was not retaliatory and did not arise from Plaintiffs’ protected litigation activity.

Cross-Complainant began investigating the claimed cleaning, property condition, and possible unauthorized occupancy immediately after move-out in January and February 2024. Plaintiffs’ complaint was not filed until February 20, 2025.

This timeline shows that Cross-Complainant’s claims arose from the tenancy, the condition of the property, and move-out facts, not from Plaintiffs’ later lawsuit.” (Opp., 8:4-16.) Cascarano provides evidence establishing minimal merit on the claims that do not arise out of protected activity. However, “[t]he anti-SLAPP procedures are designed to shield a defendant’s constitutionally protected conduct from the undue burden of frivolous litigation. It follows, then, that courts may rule on plaintiffs’ specific claims of protected activity, rather than reward artful pleading by ignoring such claims if they are mixed with assertions of unprotected activity.” (Baral v. Schnitt (2016) 1 Cal.5th 376, 393.)

Regarding the protected

activity that is the subject of this anti-SLAPP, Cascarano's mediation claim, she provides only one short assertion. Specifically, Cascarano contends that "[t]he mediation clause does not transform tenancy-based claims into protected petitioning activity. The claims arise from conduct during the tenancy and at move-out, not from Plaintiffs' lawsuit or protected litigation communications. The lease states: 'Landlord and Tenant agree to mediate any disputes or claim between them arising from this Agreement, or any resulting transaction before resorting to court action.' This language creates a mutual obligation to mediate disputes arising from the lease BEFORE resorting to court action; it does not state that the obligation is triggered only if Cross-Complainant specifically requests mediation (Exhibit 1, Pg 5, Section 35 A). Regardless, mediation was canceled twice by Cross Defendant (Exhibit 1 - pg 5 - section 35 A and Exhibit 7)." (Opp., 9:21-10:4.) Beyond this, Cascarano does not provide evidence or an argument regarding how she is likely to prevail on the breach of contract claim relating to the damages she alleges that she accrued because "the parties' fail[ed] to comply with the lease's mediation requirement." (Cross-Compl., Attach. BC-2 and BC-4.) Cascarano does not interpret the language of the contract, nor does she provide evidence of the damages she incurred from the purported breach. Cascarano's declaration in support provides an exhibit with emails discussing scheduling a mediation, which Cascarano attests that "Plaintiffs' counsel sent an email at approximately 2:10 a.m. stating, among other things, that Plaintiffs were 'no longer willing to mediate now or ever' and that 'No future opportunity to mediate will be provided.'" (Cascarano Decl., ¶ 10; Ex. 7.) However, Cascarano does not demonstrate that Plaintiffs' refusal to participate in mediation means she has a probability of prevailing. Cascarano also does not provide cases to refute the assertions Plaintiffs made in the moving papers.

In Plaintiffs' reply,

they assert that "[t]he Opposition never engages the points raised in the anti-SLAPP motion Cross-Defendants filed. The Special Motion to Strike targets one allegation and one allegation only: Cross-Complainant Adriana Cascarano's ('Cascarano') claim that Cross-Defendants owe damages of 'attorney's fees exceeding \$3,000' because Cross-Defendants filed this lawsuit without first mediating. (Cross-Complaint) The motion does not touch Cascarano's tenancy allegations (property condition, cleaning, occupancy, or the security deposit). Cross-Defendants said so expressly. Yet the entire Opposition defends those untouched tenancy allegations and never addresses the single allegation before the Court. That failure is dispositive three times over. First, the Opposition

concedes prong one by declining to address it: the mediation-fee allegation arises from Cross-Defendants' exercise of the constitutional right to petition, and Cascarano offers no answer to Navellier. Second, the Opposition concedes prong two, where Cascarano carries the burden, by offering no authority and no admissible evidence to meet any of the motion's independent grounds. Cascarano cites not a single case in the entire brief. Third, the mediation 'facts' Cascarano disputes are legally irrelevant, because the mediation clause creates no damages claim no matter who mediated, refused, or delayed." (Reply, 2:2-20, emphasis omitted.)

As the Court noted above, Cascarano does provide arguments or evidence refuting Plaintiffs' assertions in the moving papers as to why her claim cannot stand. Although the Court addresses only a few of the arguments Plaintiffs made in the moving papers, Plaintiffs provide sufficient, legally backed arguments for why Cascarano's claim does not have a probability of prevailing. Cascarano's failure to address Plaintiffs' assertions or provide the Court with legal support, in addition to evidence, demonstrating how her mediation claim satisfies the minimal merit standard is fatal.

Accordingly, Cascarano fails to make a prima facie factual showing that there is a probability she will succeed on the mediation claim for breach of contract, and the Court grants Plaintiffs' anti-SLAPP motion.

Conclusion

Plaintiffs' motion to strike the mediation claim and damages that flow from the claim under the breach of contract cause of action of Cascarano's cross-complaint is GRANTED.

Plaintiffs are ordered to give notice of this Order.

DATED: September
1, 2026

Hon. Teresa A.
Beaudet

Judge, Los
Angeles Superior Court